

26NWCV01180 26NWCV01180

County: los-angeles

Division: Civil Law and Motion

Department: C

Hearing date: 2026-07-29

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Case Number: 26NWCV01180 Hearing Date: July 29, 2026 Dept: C

DE LA CRUZ vs HYUNDAI MOTOR AMERICA

CASE NO.: 26NWCV01180

HEARING: 7/29/26 @ 9:30 a.m.

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TENTATIVE RULING

I.

Defendant

Hyundai Motor America's Motion to Compel Arbitration is DENIED. Defendant to answer within 10 days.

II.

The

Case Management Conference scheduled for August 7, 2026 is ADVANCED and

VACATED. Trial is scheduled for

September 13, 2026 at 10:00 a.m. in Dept. SE-C.

A Final Status Conference is scheduled for August 30, 2027 at 10:00 a.m.

in Dept. SE-C.

Plaintiff to give

notice.

Defendant Hyundai Motor America (Defendant) moves to compel arbitration and requests to stay the action.

Background

This is a lemon law action. On November 15, 2024, Plaintiff MARITZA DE LA CRUZ (Plaintiff) acquired a 2024 HYUNDAI PALISADE, VIN: KM8R7DGEXRU780876 (Vehicle). (Compl., ¶ 7.) Plaintiff alleges Defendant violated the Song-Beverly Consumer Warranty Act by failing to conform the Vehicle to the express written warranties within a reasonable number of repair attempts or within the warranty periods, and by failing to promptly replace the vehicle or make restitution to Plaintiff. (Compl., ¶ 14.) The Subject Vehicle manifested certain defects. The Complaint alleges the following causes of action:

- 1) Breach of Express Warranty,
- 2) Breach of Implied Warranty, and
- 3) Violation of the Song-Beverly Consumer Warranty Act.

Legal Standard

Parties may be compelled to arbitrate a dispute upon the court finding that: (1) there was a valid agreement to arbitrate between the parties; and (2) said agreement covers the controversy or controversies in the parties' dispute. (Code Civ. Proc., § 1281.2; see also *Omar v. Ralphs Grocery Co.* (2004) 118 Cal.App.4th 955, 961.) A party petitioning to compel arbitration has the burden of establishing the existence of a valid agreement to arbitrate and the party opposing the petition has the burden of proving, by a preponderance of the evidence, any fact necessary to its defense. (*Banner Entertainment, Inc. v. Superior Court* (1998) 62 Cal.App.4th 348, 356-57.)

"If a court of competent jurisdiction. . .has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies." (Code Civ. Proc., § 1281.4.)

Discussion

I.

Existence of Arbitration Agreement

Defendant argues arbitration may be enforced under the Bluelink Connected Services Agreement (“CSA”). (Motion, at p. 5.) Defendant contends that on November 16, 2024, Plaintiff enrolled the Subject Vehicle in Defendant’s CSA through a dealer-assisted enrollment process which included an agreement to arbitrate. (Rao Decl., ¶ 7.) Defendant declares that Plaintiff had to affirmatively click the box acknowledging that they agreed to the CSA’s terms and conditions. (Id. at ¶ 11.)

The arbitration provision provides as follows:

“Hyundai and you agree to arbitrate any and all disputes and claims between us arising out of or relating to this Agreement, Connected Services, Connected Services Systems, Service Plans, your Vehicle, use of the sites, or products, services, or programs you purchase, enroll in or seek product/service support for, whether you are a Visitor or Customer, via the sites or through mobile application, except any disputes or claims which under governing law are not subject to arbitration, to the maximum extent permitted by applicable law. This agreement to arbitrate is intended to be broadly interpreted and to make all disputes and claims between us subject to arbitration to the fullest extent permitted by law.

[...]

The agreement to arbitrate otherwise includes, but is not limited to: claims based in contract, tort, warranty, statute, fraud, misrepresentation or any other legal theory; claims that arose before this or any prior Agreement (including, but not limited to, claims relating to advertising) [...]”

(Rao Decl., Exh. B.)

The Court finds that Defendant has not met its burden of showing that a valid arbitration agreement exists. Defendant has not provided any contract or agreement that contains Plaintiff’s signature. (Garrison v. Superior Ct. (2005) 132 Cal.App.4th 253, 263–64 [“Although, as noted, California has a strong public policy in favor of arbitration, there is no

preference for the arbitral forum when the parties have not agreed to arbitrate.”]; Ramirez v. Golden Queen Mining Co., LLC (2024) 102 Cal.App.5th 821, 831 [“[A] party seeking arbitration can carry its initial burden “ ‘by attaching a copy of the arbitration agreement purportedly bearing the opposing party's signature.’”].)

The Court finds that Plaintiff did not enter into an agreement to arbitrate her statutory claims via the CSA. Defendant fails to demonstrate that the causes of action in Plaintiff's complaint arise from the CSA, thereby implicating the arbitration provision. The arbitration clause in the CSA applies to claims related to the “connected services” that are the subject of the agreement, not the statutory claims brought by Plaintiff. Finding that the CSA covers all claims regarding the Subject Vehicle would overreach the intent of the agreement, and the understanding of the parties at the time Plaintiff accepted the CSA terms.

Accordingly, Defendant's Motion to Compel Arbitration is DENIED.